

Dispute Chamber

Decision on the merits 75/2025 of April 24, 2025

File number: DOS-2020-03929

Subject: complaint regarding the processing of personal data of visitors to a residential care center during the COVID-19 pandemic

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, chair, and Messrs. Dirk Van Der Kelen and Jelle Stassijns, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "WOG"¹;

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant"

The respondent:

Y, represented by masters Magali Feys and Emma Van den Eynde, hereinafter "the respondent"

1 The GBA reminds that the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (WOG), and the new internal rules of procedure of the GBA, came into force on June 1, 2024. The new provisions apply to complaints, mediation files, requests, inspections, and procedures for the Dispute Chamber that commence from this date. The new WOG is available via this link: [https://www.gegevensbeschermingsautoriteit.be/publications/reglement-van-interne-orde-van-de-gegevensbeschermingsautoriteit.pdf](https://www.ejustice.just.fgov.be/cgi/loi/change lg.pl?language=nl&la=N&cn=2017120311&table; name=wet, and the internal rules of procedure via this link: <a href=). Files initiated before June 1, 2024, of which this file is a part, are subject to the provisions of the WOG and the internal rules of procedure as they existed before this date.

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I. Facts and procedure

1.

On August 11, 2020, the complainant filed a complaint with the Data Protection Authority against the respondent. [...]. The complaint is framed within the specific measures taken during the COVID-19 pandemic.

2.

In his complaint, the complainant states that prior to a visit to his grandfather in a residential care center of the respondent, he is required to submit a copy of his identity card to the respondent. This obligation is explicitly included in the visiting regulations that were sent to him. Additionally, he complains that he is required to fill in personal data, including health data, in a declaration of honor and a declaration of good conduct (the respondent refers to this as a 'charter'), the submission of which is also a mandatory condition for visiting. The complainant explains that the declaration of honor, which was sent to him by the respondent on July 17, 2020, constitutes a health declaration in which the visitor is asked about his body temperature, and (the absence of) symptoms, diagnoses, recent risk contacts, and medication use.

3.

Upon receiving the visiting regulations and the declarations to be filled out, the complainant sends an

email to the residential care center stating that he does not agree with the forwarding of the requested documents. The complainant argues that requesting a copy of his identity card is unlawful and contrary to the provisions of the GDPR, as the residential care center could just as well request the identity card on-site and verify the identity of visitors. Moreover, the complainant points out that data about someone's health is considered a 'special category of personal data' according to Article 9 GDPR, and that the processing of such data is generally prohibited, except for a few exceptions. The complainant also requests a copy of the privacy statement in accordance with Article 13 GDPR.

4.

In the absence of a - according to the complainant - appropriate response, he decides on July 17, 2020, to forward the previous email conversations to the Data Protection Officer (DPO) of the respondent. On July 24, 2020, the complainant receives a response stating that some time is needed to review his comments, and the DPO refers to the privacy statement of the respondent. In his response to this answer, the complainant points out to the DPO that this privacy statement does not mention the data processing that occurs in the context of the visiting regulations in any way.

5.

On July 31, 2020, the complainant receives from the respondent a revised version of the declarations to be filled out. The new version of the declaration of honor no longer asks the visitor for their measured temperature but only asks the visitor to declare that they have performed a temperature measurement. In his email to the complainant, the

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The respondent states the following regarding this matter: "In light of the recent COVID-19 flare-ups and the tightened measures, we have an amended version of the declaration of honor and the charter. You will find this in the annex. We prefer to use our own version and are not bound by the model that the Agency provided as an example some time ago. Regarding your comment about temperature measurement, the Agency indeed states that this is of little use. This is obviously the case if one only considers fever as the main symptom. Nevertheless, we find it useful to continue doing this, and it is also permitted. Fever remains a symptom, and it is not advisable to expose our vulnerable group of residents or our staff to individuals with fever. This is, in our opinion, part of the precautionary measures in the fight against the further spread of COVID-19. We also want to point out that registration of this was not intended and is not intended. Our statement has also been adjusted on that point and poses no problems in light of the GDPR."

6. On August 4, 2020, the complainant receives a response from the DPO of the respondent regarding his remark that the forwarded privacy statement does not mention the data processing that occurs in the context of the visiting arrangement in any way. He receives the privacy statement applicable to visitors and is informed about the most recent procedure regarding visitor registration. The DPO explains that the respondent is currently in a transitional phase. In some residential care centers, visitors can enter their data into an online reservation system, where they receive a specific privacy statement during their first visit, along with a declaration of honor and the charter. The DPO explains that not all residential care centers have switched to the digital system yet. In the centers that have not yet transitioned, paper documents are still being used. In those cases, the privacy statement applicable to visitors is now also physically presented to the visitors for inspection. The DPO explains that, due to urgency, the privacy statement on the website has not yet been fully adapted to the new situation. The privacy statement concerning visitors has thus been developed in a separate document that is provided to those concerned when they wish to register for a visit, whether online or on paper.

7. On August 25, 2020, the complaint is declared admissible by the First Line Service based on Articles 58 and 60 WOG and is forwarded to the Disputes Chamber based on Article 62, § 1 WOG.

8. On September 1, 2020, the Disputes Chamber decides, based on Article 63, 2° and 94, 1° WOG, to request an investigation from the Inspection Service.

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9. On September 2, 2020, in accordance with Article 96, § 1 WOG, the request from the Disputes Chamber for an investigation is forwarded to the Inspection Service, along with the complaint and the inventory of documents.

10. On October 27, 2020, the investigation by the Inspection Service is completed, the report is added to the file, and the file is forwarded by the Inspector General to the Chair of the Disputes Chamber in accordance with Article 91, § 1 - § 2 WOG.

11. The report contains findings regarding the subject of the complaint:

1) The respondent is the data controller concerning the processing of personal data that is the subject of the complaint, as it independently and autonomously organizes visitor registration in the context of combating COVID-19. Only the respondent determines the purpose and means of the processing and thus acts as the sole data controller.

2) Regarding the collection of data that occurred in the context of visitor registration, the Inspection Service has found that the respondent has violated Article 5, paragraph 1 and paragraph 2 GDPR, Article 6, paragraph 1 GDPR, Article 9, paragraph 1 and 2 GDPR, Article 24, paragraph 1 GDPR, and Article 25, paragraph 1 and paragraph 2 GDPR.

3) Regarding the privacy statement of the respondent as consulted by the Inspection Service, it finds that the respondent violated Article 12, paragraph 1 and paragraph 6 GDPR, Article 13, paragraph 1 and paragraph 2 GDPR, and Article 14, paragraph 1 and paragraph 2 GDPR.

4) Regarding the Data Protection Officer (DPO) of the respondent, the Inspection Service has found that the respondent has violated Article 37, paragraph 5 and paragraph 7 GDPR, as well as Article 38, paragraph 2 and paragraph 3 GDPR.

12. The report also contains findings that go beyond the subject of the complaint:

1) The respondent violates Article 30, paragraph 1 and 3 GDPR, as the processing register does not meet the minimum requirements contained therein. More specifically, the Inspection Service finds a violation because the contact details of the data controller were not included in the register (Article 30.1. a) GDPR), because it considers the description of the categories of data subjects and personal data to be incomplete (Article 30.1. c) GDPR), because it is unclear to which third countries personal data are transferred (Article 30.1. e) GDPR), and, more generally, because an incomplete register of processing activities was presented to the Inspection Service (Article 30, paragraph 1 and 3 GDPR).

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13.

On January 21, 2021, the Dispute Chamber decides, based on Article 95, § 1, 1° and Article 98 of the WOG, that the file is ready for substantive treatment.

14.

On January 21, 2021, the parties involved are notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 of the WOG. They are also informed, based on Article 99 of the WOG, of the deadlines for submitting their defenses.

15.

Regarding the findings related to the subject of the complaint, the deadline for receipt of the response from the complainant is set for March 4, 2021, and the deadline for the reply from the respondent is set for March 25, 2021. For findings that go beyond the subject of the complaint, the deadline for receipt of the response from the respondent is also set for March 25, 2021.

16.

On March 3, 2021, the Dispute Chamber receives the response from the complainant regarding the findings related to the subject of the complaint. The complainant argues that the processing of his personal data by the respondent is not merely hypothetical, as he effectively visited his grandfather on August 20, 2020. To gain access to the residential care center, he filled out and submitted two paper forms. These forms contain his contact details (name, address, phone number, email address), the name of the resident, his relationship to the resident, and several declarations on honor that can be read together as a statement that he is not infected with the COVID-19 virus. The complainant was also required to indicate whether he had measured his temperature, without having to record the measured temperature. Legally, the complainant aligns himself with the findings of the Inspection Service. The complainant emphasizes that the respondent uses multiple systems for visitor management (different variations of paper forms, as well as an electronic system), which could explain some differences between his complaint and the findings in the inspection report. The complainant requests the Dispute Chamber to take into account the original complaint and the documents

submitted in that regard. The complainant notes that the Inspection Service did not further investigate the processing of the copy of the identity card in the context of visitor management. The complainant indicates that although the respondent has ceased that practice after pressure, the submitted visitor management system suffices as evidence of the large-scale processing of data on visitors' identity cards. Finally, the complainant requests that the respondent's attitude towards him be qualified as an aggravating circumstance.

17.

On March 25, 2021, the Dispute Chamber receives the reply from the respondent. The respondent first outlines the situation in which the data processing took place (pandemic and uncertain circumstances) and proceeds to a chronological account of the facts. Legally, the respondent argues that the visitor management and visitor registration, at least at the time of the submission of the complaint, were fully set up in accordance with the provisions of the GDPR. The respondent then addresses the alleged violations of which they are accused by the complainant. The respondent states that all means put forward by the complainant in his complaint are either irrelevant or entirely unfounded. Regarding the findings of the Inspection Service within the scope of the complaint, the respondent argues that they should be declared unfounded. The conclusion also contains the respondent's response to the findings made by the Inspection Service outside the scope of the complaint, which they also consider unfounded. Finally, the respondent also indicates a desire to be heard, in accordance with Article 98 of the WOG.

18.

On August 27, 2021, the parties are informed that the hearing will take place on September 21, 2021.

19.

On September 21, 2021, the parties are heard by the Dispute Chamber.

20. On October 4, 2021, the minutes of the hearing are presented to the parties.

21.

On October 9, 2021, the Dispute Chamber receives some comments from the complainant regarding the minutes, which it decides to include in its deliberation.

22.

On October 11, 2021, the Dispute Chamber receives some comments from the respondent regarding the minutes, which it decides to include in its deliberation.

23.

The deliberation of the Dispute Chamber has taken much longer than usual, and the COVID-19 pandemic is now in the past. Since the parties have defended themselves and a hearing has taken place, this decision is still made.

II. Reasoning

II.1. The request for a copy of the complainant's identity card

a) Complainant's position

24.

In his complaint, the complainant argues that the request for a copy of his identity card by the respondent is in violation of the Law of July 19, 1991, as the respondent has no authorization to process the photo and the national register number on his identity card. According to the visitor management system that was sent to him on July 17, 2020, the complainant is asked

2 Law of July 19, 1991, concerning population registers, identity cards, foreigner cards, and residence documents, B.S. September 3, 1991.

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“once” to send a copy of his identity card, which according to the complainant makes it evident that this copy will be retained by the respondent for future visits. The complainant argues that there can be no question of free consent, given that the copy of the identity card is made a mandatory condition for a visit. The complainant also contends that the photo on his identity card constitutes a biometric data in accordance with Article 4.14 of the GDPR, which is used by the respondent for the purpose of his identification. According to the complainant, the respondent fails to invoke any legal basis for that processing, which means that it infringes Article 9.1 of the GDPR.

b) Position of the Respondent

25.

The respondent argues that this argument has become moot. After the respondent was informed by the complainant about the processing of copies of identity cards of visitors by the relevant residential care center, it immediately ceased this practice. According to the respondent, this was communicated to the complainant on July 17, 2020, which according to her means that this practice had already been stopped before the complaint was filed. The respondent emphasizes that the collection of the copy of the identity card from visitors was done on the initiative of the relevant residential care center, without any prior communication to the respondent. The respondent states that this was a local, one-time, and human oversight by the relevant residential care center, which was in no way part of its policy regarding visitor arrangements and registration.

c) Assessment of the Disputes Chamber

26.

The Disputes Chamber recalls Article 6, §4 of the Act of July 19, 1991, concerning the population registers, identity cards, residence permits, and residence documents, which stipulates that the national register number and the photo of the holder of the identity card may only be used if the user is authorized to do so by or under a law, decree, or ordinance. The Disputes Chamber notes that the respondent does not mention any such authorization. The Disputes Chamber also points to Recommendation 03/2011 of the Commission for the Protection of Privacy (CBPL), in which the Commission already ruled that no copy (photocopy or electronic copy) of the identity card may be taken outside the legally prescribed cases. Although the Disputes Chamber understands that at the time of the facts, visitor registration was necessary to enable contact tracing imposed by the various federated entities in the context of COVID-19, it agrees with the complainant's position that the necessity to identify/contact a person does not

3 Recommendation No. 03/2011 of May 25, 2011, on taking a copy of the identity card and on the use of its electronic reading (CO-AR-210-008).

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means that a copy of the identity card must be taken. The Dispute Chamber is of the opinion that a person can be sufficiently identified by the simple request to present their identity card and performing a visual check. The Dispute Chamber reminds that the simple physical presentation of the identity card does not, in itself, constitute processing to which the GDPR, in accordance with Article 2.1 thereof, applies, as it does not involve automatic data processing, nor any other processing of data intended to be included in a file.

27.

The Dispute Chamber appreciates the initiative of the respondent to immediately cease the processing of copies of identity cards when it was made aware of this. However, the Dispute Chamber is of the opinion that this does not provide a justification for the processing that took place prior to that cessation. Indeed, the forwarding of a copy of the identity card was explicitly set as a condition in the visitation arrangement as it was first presented to the complainant. The Dispute Chamber rules that this means that in the period before the complainant's notification, the request for the identity card of visitors was a common practice in the relevant residential care center.

28.

The respondent also points to the local nature of the error that occurred in the relevant residential care center, and to the fact that the request for a copy was by no means part of its policy. In this regard, the Dispute Chamber reminds that the responsibility for compliance with the GDPR and the laws containing provisions regarding the protection of personal data lies with the respondent, who, as established by the Inspection Service and also stated by the respondent

itself, can only be designated as the data controller. Its task is not only to establish a lawful policy regarding visitor registration but also to exercise control over that policy within its entity.

29.

The Dispute Chamber therefore establishes that the respondent requested and retained copies of identity cards from visitors for the purpose of identifying visitors when they register at the reception of the residential care center. The Dispute Chamber points out that the respondent thereby processes the national registration number and the photo of the holder of the identity card. The Dispute Chamber finds that the respondent has acted in violation of Article 6, §4 of the aforementioned law of July 19, 1991, which determines the conditions for lawful processing of that data. Additionally, the Dispute Chamber points out that the request and retention of a copy of an identity card also means that all other data on that identity card is processed, such as gender, nationality, date of birth, card number, and expiration date. The respondent must also have a legal basis in the sense of Article 6.1. GDPR for the processing of that data, which it does not assert.

30. However, the Dispute Chamber rules that the complainant's position that the processing of a copy of his identity card automatically involves the processing of biometric data in the sense of Article 4.14. GDPR is unfounded. Although the respondent used the identity card in this case for the unique identification of the involved visitor, it is not demonstrated that this occurred using technical means. In this regard, the Dispute Chamber refers to Recital 51 of the GDPR, which states the following: "The processing of photographs should not be systematically considered as processing of special categories of personal data, as photographs only fall under the definition of biometric data when they are processed using certain technical means that make the unique identification or authentication of a natural person possible."

31.

For the above reasons, the Dispute Chamber is of the opinion that the respondent committed a breach of Article 6, §4 of the aforementioned Law of July 19, 1991, as well as Article 6.1. GDPR.

32.

In its assessment, the Dispute Chamber takes into account the fact that the respondent ceased the processing of copies of identity cards even before the complaint was filed. The respondent also proves that all collected copies have already been deleted.⁴

II.2. Article 5, paragraph 1 and paragraph 2 GDPR, Article 6, paragraph 1 GDPR, Article 9, paragraph 1 and 2 GDPR, Article 24, paragraph 1 GDPR and Article 25, paragraph 1 and paragraph 2 GDPR

II.2.1. Regarding the lawfulness of the processing carried out in the context of visitor registration

a) Findings in the Inspection Report

33. The Inspection Service finds that the respondent is in breach of Article 6.1. GDPR and Article 9.1. GDPR. During the investigation by the Inspection Service, the respondent is asked what the legal grounds are in accordance with Article 6.1. GDPR based on which the respondent processes personal data in the context of the visitation arrangement. Additionally, the respondent is asked to demonstrate that one of the conditions of Article 9.2. GDPR has been met for the special categories of personal data processed in that context.

4 Document 37. Email dated March 25, 2021 – Bundle of documents for the respondent's reply.
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34. The Inspection Service establishes that the respondent claims to rely on Article 6.1. c) and 6.1. e) GDPR for the processing of personal data in relation to visitor registration, without demonstrating which legal obligation and which task of general interest is specifically involved. The Inspection Service considers this a violation of Article 5.1. a) GDPR, 5.2. GDPR, 6.1. GDPR, 24.1. GDPR, and 25.1. GDPR, and also refers to Recital 45 of the GDPR.

35. The Inspection Service also notes that the respondent asserts that no special categories of personal data are processed in relation to visitor registration in accordance with Article 9 GDPR, which means that no legal basis under Article 9.2. GDPR is necessary. The Inspection Service observes that the respondent collects personal data in the context of visitor registration such as "check if a temperature measurement was performed" and "check field temperature control." The Inspection Service emphasizes that measuring the temperature of visitors is indeed a "data concerning health" as per Article 4.15. GDPR. It recalls that the processing of such data is generally prohibited according to Article 9.1., unless an exception under Article 9.2. GDPR applies. For these reasons, the Inspection Service establishes that the respondent violated Article 5.1. a) GDPR, 5.2. GDPR, 9.1. GDPR, 24.1. GDPR, and 25.1. GDPR.

b) Position of the Respondent

36. The respondent argues that, regarding the processing of non-sensitive personal data, it had a legal obligation under Article 6.1. c) GDPR to register the name, address, telephone number, and the relationship between the visitor and the resident in the context of the visiting arrangement.

Furthermore, according to the respondent, it had a legal obligation to refuse visitors who exhibited symptoms of COVID-19 (including fever) within 15 days prior to the visit, who tested positive for COVID-19 in the last 15 days, or who are considered low/high-risk contacts. These obligations were imposed on it by the Agency for Care and Health, which on July 9, 2020, imposed new temporary measures applicable to all residential care centers in Flanders.⁵ To comply with the aforementioned obligations, the respondent presented a declaration of honor to each visitor, in which the visitor had to declare that they met the requirements. The respondent argues that the aforementioned temporary measures from the Agency for Care and Health expressly provided it with the option to use a declaration of honor for visitors. The respondent indicates that it has residential care centers under its authority in Flanders, Wallonia, and Brussels, for which the agencies of the various federated entities all

5 Temporary measures after the COVID-19 peak for all residential care centers, type 1 short-stay centers, recovery stay centers, groups of assisted living apartments, and service flat buildings in Flanders, issued by the Agency for Care & Health, dated July 9, 2020 (Document 1 – Bundle of documents for the reply conclusion).; The respondent notes that the Agency for Care & Health does not have legal personality, which means that the measures and guidelines imposed by it are issued by the Flemish government or the Flemish Community.

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imposed similar but different measures. Thus, from the Brussels Iriscare, the obligation was imposed to have visitors sign a declaration of honor, while for Flanders it was a possibility. It seemed opportune for the respondent to comply with the strictest regulation, as developing different regulations would be less clear and hinder efficient operation.

37.

Furthermore, the respondent argues that visitor registration was necessary to enable contact tracing imposed by the various federated entities within the community of the residential care center. The visitor registration would allow contact tracers to inform visitors when there was a COVID-19 outbreak in a residential care center. The respondent refers to Royal Decree No. 44 of June 26, 2020, later replaced by the Cooperation Agreement of August 25, 2020.

38. Regarding the temperature measurement of visitors, the respondent argues that measuring the temperature of visitors who wished to access a residential care center during the period of May-August 2020 was crucial. Fever was identified by the Agency for Care and Health and by the agencies of the other federated entities as an important symptom of COVID-19. Access to a residential care center had to be denied to individuals exhibiting this symptom. During that period, it was common in Belgium,

according to the respondent, for the temperature of certain individuals, such as hospital visitors or employees in the workplace, to be measured. In this context, the respondent decided to measure the temperature of all visitors before they were allowed to enter the facility, in order to verify whether the declaration of honor was accurately completed.

39. However, the respondent emphasizes that the declaration of honor, as applicable at the time of the complaint's submission, no longer requested a measured body temperature and medication use. The respondent indeed adjusted this following the complaint lodged by the complainant on July 17, 2020, to the DPO of the respondent. On July 31, 2020, an amended version of the declaration of honor was provided to the complainant, in which the body temperature of the visitor was no longer requested.

6 Royal Decree No. 44 of June 26, 2020, concerning the joint data processing by Sciensano and the competent regional authorities or by the competent agencies designated contact centers, health inspections, and mobile teams in the context of contact tracing or detection of individuals who are (suspected to be) infected with the coronavirus COVID-19 based on a database of Sciensano (hereinafter referred to as RD No. 44)

7 Cooperation Agreement of August 25, 2020, between the Federal State, the Flemish Community, the Walloon Region, the German-speaking Community, and the Common Community Commission, concerning the joint data processing by Sciensano and the competent federated entities or by the competent agencies designated contact centers, health inspections, and mobile teams in the context of contact tracing or detection of individuals who are (suspected to be) infected with the coronavirus COVID-19 based on a database at Sciensano (hereinafter referred to as Cooperation Agreement for contact tracing).

8 Document 2. Declaration of honor version 1 – Bundle of documents conclusion of the respondent's reply

9 Document 8. Declaration of honor version 2 – Bundle of documents conclusion of the respondent's reply

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determination – regarding the non-administration of any antipyretic medication in the 12 hours prior to the visit to the facility – removed from the declaration on honor.

Regarding the finding in the inspection report – which states that the registration of a “check if a temperature measurement was performed” and a “check field temperature control” amounts to the processing of health data – the respondent argues that the Inspection Service has made an erroneous interpretation. According to the respondent, the Inspection Service overlooks the fact that the measured temperature itself was not processed, but only the fact of whether or not a temperature measurement was performed by the visitor. The respondent asserts that the mere check of whether a temperature measurement is conducted does not, in itself, constitute health data. Finally, the respondent indicates that, taking into account the adjusted measures of the federated entities and the inspection report, it has decided to also remove the checkbox regarding the temperature measurement, both for the paper registration form and for the registration via the digital visitor application.

40. The respondent argues that, if the Dispute Chamber were to interpret the concept of ‘health data’ broadly, and determines that the registration of the data in the declaration on honor (version 2) constitutes processing of health data, it invokes Article 9.2. i) GDPR in conjunction with Article 6.1. c) GDPR to justify that processing. The respondent contends that the data in the declaration on honor can be processed by it, as this is necessary for reasons of public interest in the field of public health. The respondent points to Recital 46 GDPR, which explicitly states that this legal basis can be used for the processing of health data in the context of a pandemic. The respondent also refers to the Statement of the EDPB regarding the processing of personal data in the context of the COVID-19 outbreak, which according to it states that it can process health data in the context of the COVID-19 crisis if this is of substantial public interest in the field of public health.

41. In response to the amended measures of the Agency for Care and Health, the respondent decided on December 14, 2020, to draft a revised version of the declaration on honor, based on the example of the aforementioned agency.

c) Assessment of the Dispute Chamber

42. The Dispute Chamber notes that the declaration on honor, as it was forwarded to the complainant on July 17, 2020 (version 1), asks for the measured temperature of the visitor on the day of the visit. The complainant is entitled to file a complaint regarding practices that directly concern him, even if these practices occurred prior to the

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submission of the complaint amended.¹² It cannot be denied that the complainant, whose grandfather resided in a care facility of the respondent at the time of the events, had a direct and personal interest in the disputed data protection practices of the respondent. The Dispute Chamber also notes that the respondent measured the temperature of all visitors before they were allowed to enter the facility, in order to verify whether the declaration of honor was accurately completed. Furthermore, the Dispute Chamber notes that the declaration of honor asks the visitor to declare that he, “in the 12 hours prior to the visit, has not undergone any antipyretic treatment or taken medication for fever (such as paracetamol, anti-inflammatory drugs, aspirin, etc.).”

43. The Dispute Chamber recalls that the GDPR defines “health data” in accordance with Article 4.15 as ‘personal data related to the physical or mental health of a natural person, including data on health services provided that reveal information about his health status.’ The Dispute Chamber rules that it is beyond doubt that a person’s body temperature constitutes a health data, as this information can reveal an aspect of a person’s physical health, namely the presence of fever. The Dispute Chamber also rules that the question regarding a person’s medication use in the last 12 hours also constitutes health data.¹³ Additionally, the Dispute Chamber undeniably establishes that the respondent processed the body temperature of visitors, as they compared the reported temperature on the declaration of honor with the temperature measured in the care facility on the day of the visit. Moreover, access to the care facility was denied if the visitor refused to complete the declaration of honor, or if an elevated body temperature was detected in the visitor.

44. The Dispute Chamber recalls that, in accordance with Article 9.1. GDPR, health data is a special category of personal data, the processing of which is generally prohibited. The respondent must therefore demonstrate that it can invoke an exception under Article 9.2. GDPR to not be subject to the processing prohibition. Regarding the registration and monitoring of the visitor’s body temperature, and regarding the question of his medication use, the Dispute Chamber finds that the respondent has not established any legal basis for

¹² See *mutatis mutandis*, Cass. October 15, 2021, C.0323.N, §3: “From the entirety of the aforementioned legal provisions, it follows unequivocally that a data subject has the right to lodge a complaint with the Data Protection Authority against a processing practice that he believes infringes on his rights under the GDPR, such as the right to have his personal data processed minimally, pursuant to Article 5, paragraph 1, c), GDPR, so that he can benefit from a service or advantage. This is also the case when the personal data of the data subject himself was not processed, but he did not obtain the advantage or service because he, precisely due to the existence of the allegedly infringing practice, refused his consent to the processing.”

¹³ See regarding the interpretation of what qualifies as health data: CJEU judgment of October 4, 2024, ND DR, C-21/23, §§81-83.

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the foregoing relieves it from the principal prohibition on processing such health data. On the contrary, the Dispute Chamber finds that the respondent, after being prompted by the complainant, has recognized that it was unlawfully processing the aforementioned health data, after which it decided to amend the declaration of honor accordingly. Additionally, the Dispute Chamber notes that the temporary measures of the Agency for Care and Health, on which the respondent bases its processing of the other data in the declaration of honor, clearly state that taking the body temperature upon entering the facility proves to be of little value.

45. For these reasons, the Dispute Chamber rules that the respondent infringed Article 9.1 of the GDPR by processing the body temperature and medication use of visitors during the period prior to the aforementioned amendments.

46. As further explained in paragraph 5 of this decision, the respondent decides in the amended

version of the declaration of honor (version 2) to work with a checkbox, whereby the visitor must declare that they have conducted a temperature measurement. Contrary to the Inspection Report, the Dispute Chamber agrees with the respondent's position that a mere check to see if someone has conducted a temperature measurement, without recording or otherwise processing the body temperature, does not constitute the processing of health data that falls under the processing prohibition of Article 9.1 of the GDPR. In light of the principle of data minimization (Article 5.1.c) of the GDPR), the Dispute Chamber supports the respondent's initiative to also remove the checkbox regarding the temperature measurement from the declaration of honor. For these reasons, the Dispute Chamber rules that the respondent did not infringe Article 9.1 of the GDPR by processing the mere fact of whether a visitor has conducted a temperature measurement.

47. The Dispute Chamber finds that the amended declaration of honor (version 2), as filled out by the complainant following the visit to his grandfather on August 20, 2020, collected the following data:

- o Name, first name, address, phone number, and email address (optional) of the visitor.
- o The relationship of the visitor to the resident and the name of the resident.
- o The visitor's declaration that he/she does not have any symptoms today that indicate the presence of the COVID-19 virus, particularly symptoms such as fever, respiratory symptoms (coughing, difficulty breathing), flu symptoms (headache, muscle pain), severe fatigue, general feeling of discomfort/illness, gastrointestinal symptoms (diarrhea, nausea, vomiting), or loss or change of taste and/or smell.

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- o The visitor's declaration that he/she has not had any of these symptoms in the past 15 days.
- o The visitor's declaration that he/she has not been diagnosed with COVID-19 in the past 15 days (via nasal and/or blood tests).
- o The visitor's declaration that he/she has not had close and/or prolonged contact with a sick person suspected or confirmed to be infected with COVID-19 in the past 15 days.
- o The visitor's declaration that, in the context of the regulations regarding travel to potential risk areas, he/she is not required and also not recommended to be in home isolation or quarantine.

48. The Dispute Chamber notes that the respondent invokes Article 6.1.c) of the GDPR to process the data listed in paragraph 47, assuming that these are not health data. Additionally, the Dispute Chamber notes that the respondent argues that if the Dispute Chamber were to interpret the term 'health data' broadly and rules that the registration of the aforementioned data constitutes the processing of health data, it invokes Article 9.2.i) of the GDPR read in conjunction with Article 6.1.c) of the GDPR to justify that processing.

49. The Dispute Chamber first points out that it is the respondent's responsibility to assess prior to processing whether the data it wishes to process constitutes health data and to find an appropriate legal basis if necessary. Nevertheless, the Dispute Chamber clarifies that data regarding the absence of COVID-19 symptoms or diagnoses, the absence of contact with (possibly) infected persons, and declarations that one is not in home isolation or quarantine do indeed qualify as health data as defined in Article 4.15 of the GDPR. The Dispute Chamber takes note that the respondent thus invokes Article 9.2.i) of the GDPR in conjunction with Article 6.1.c) of the GDPR for the processing of this data. For the processing of the visitor's contact details, it only invokes Article 6.1.c) of the GDPR.

- Regarding the processing of visitors' contact details

50. The Dispute Chamber finds that for the processing of the (first) name, address, and phone number of the visitor, the respondent invokes the legally required visitor registration that it had to carry out, which was necessary to enable contact tracing imposed by the various federated entities within the community of the residential care center. The respondent refers to the

14 See CJEU Judgment of August 1, 2022, Vyriausioji tarnybinės etikos komisija, C-184/20, §§ 125-127.

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Royal Decree No. 44 of June 26, 2020 (a material legal norm), later replaced by the Cooperation Agreement of August 25, 2020 (a formal legal norm). There was retroactive effect granted to the aforementioned Royal Decree No. 44 through Article 19 of the latter norm – regarding which the

Constitutional Court did not raise any specific issues in a ruling concerning the Cooperation Agreement. The Dispute Chamber notes that the temporary measures of July 9, 2020, from the Agency for Care and Health mention the following in this context: "All external care and service providers, volunteers, and visitors entering a residential care center, a short-stay center type 1, or a recovery center are registered for contact tracing purposes, with attention to the General Data Protection Regulation, with at least the following data: name, address, phone number, and, if applicable, relationship with the resident. This provision makes clear agreements about where and how this data is stored and does not use it for any processing other than in the context of contact tracing."

51. Based on the above, the Dispute Chamber concludes that the respondent could lawfully rely on Article 6.1. c) GDPR for the processing of the (first) name, address, phone number of the visitor, and, if applicable, the relationship with the resident being visited. The aforementioned Royal Decree and Cooperation Agreement aim to ensure a coordinated and efficient approach to contact tracing for COVID-19 in Belgium. The Dispute Chamber considers the processing of the aforementioned contact details necessary to quickly inform visitors who have come into contact with a high/low-risk contact in the residential care center. The Dispute Chamber understands that this information must reach the concerned visitor in the short term, which means that the processing of the aforementioned contact details should be regarded as necessary to fulfill its legal obligation to contribute to the cooperation regarding contact tracing as established in the aforementioned Royal Decree and Cooperation Agreement.

15 Royal Decree No. 44 of June 26, 2020, concerning the joint data processing by Sciensano and the competent regional authorities or by the competent agencies designated contact centers, health inspections, and mobile teams in the context of contact tracing or detection of persons who are (suspected to be) infected with the coronavirus COVID-19 based on a database from Sciensano (hereinafter KB No. 44)

16 Cooperation Agreement of August 25, 2020, between the Federal State, the Flemish Community, the Walloon Region, the German-speaking Community, and the Common Community Commission, concerning the joint data processing by Sciensano and the competent federated entities or by the competent agencies designated contact centers, health inspections, and mobile teams in the context of contact tracing or detection of persons who are (suspected to be) infected with the coronavirus COVID-19 based on a database at Sciensano (hereinafter: Cooperation Agreement on contact tracing).

17 Constitutional Court ruling of September 22, 2022, No. 110/2022, §B.1.5.
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Regarding the processing of health data in the declaration of honor
52.

As the Dispute Chamber has previously ruled, the processing of special categories of personal data within the meaning of Article 9 of the GDPR must be based on Article 9.2 of the GDPR, read in conjunction with Article 6.1 of the GDPR. This is also confirmed by Recital 51 of the GDPR, which states the following about the processing of special categories of personal data: "In addition to the specific provisions for that processing, the general principles and other rules of this Regulation must be applied, in particular with regard to the conditions for lawful processing."

53. The Dispute Chamber emphasizes that the respondent can only invoke the legality basis of Article 6.1. c) GDPR and the exception provided for in Article 9.2. i) of the GDPR if it demonstrates:

- (i) That there is an important reason of general interest in the field of public health (Art. 9.2. i));
- (ii) That there is a legal provision on which the respondent can validly rely in accordance with Articles 6.1. c), 6.3., and 9.2. i) of the GDPR;
- (iii) That the relevant processing is necessary to comply with the legal obligation invoked in accordance with Article 6.1. c) GDPR; as well as necessary for reasons of general interest in the field of public health in accordance with Article 9.2. i) GDPR.

54. Regarding the first constitutive element (i), the GBA has previously decided that there can be no

doubt that combating the COVID-19 pandemic must be considered a "weighty public interest in the field of public health" within the meaning of Article 9.2. i) GDPR. As the respondent argues, this is explicitly stated in Recital 46 of the GDPR, which refers to "[the

18 Cf. the decision on the merits 76/2021, paragraph 33, and the decision on the merits 47/2022, paragraph 81

19 See in this regard: GEORGIEVA, L. and KUNER, C., "Article 9. Processing of special categories of personal data" in KUNER, C., BYGRAVE, L.A. and DOCKSEY, C., *The EU General Data Protection Regulation (GDPR). A Commentary*, Oxford University Press, Oxford, p. 37: "The Commission has stated that the processing of sensitive data must always be supported by a legal basis under Article 6 GDPR, in addition to compliance with one of the situations covered in Article 9(2). The EDPB has also stated that 'If a video surveillance system is used in order to process special categories of data, the data controller must identify both an exception for processing special categories of data under Article 9 (i.e. an exemption from the general rule that one should not process special categories of data) and a legal basis under Article 6.'" Free translation: "The Commission has stated that the processing of sensitive data must always be supported by a legal basis under Article 6 GDPR, in addition to compliance with one of the situations covered in Article 9(2). The EDPB has also stated: 'If a video surveillance system is used to process special categories of data, the data controller must establish both an exception for processing special categories of data under Article 9 (i.e. an exception to the general rule that one should not process special categories of data) and a legal basis under Article 6.'"

20 Own emphasis by the Dispute Chamber.

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monitoring] of an epidemic and its spread" as a "serious reason of general interest."

55. The second constitutive element (ii) relates to the existence of a legal provision on which the processing in question is based in accordance with Articles 6.1. c) and 9.2. i) of the GDPR.

56. In accordance with Article 6.3. of the GDPR, viewed in light of Recital 41 of the GDPR, the processing of personal data that is necessary for compliance with a legal obligation must be based on clear and precise legislation whose application is foreseeable for the data subjects. Article 6.3. of the GDPR specifies in this regard that the legal basis for the processing referred to in Article 6.1. c) must be established either by Union law or by the national law applicable to the data controller, whereby at least the purpose of the processing must be established in that legal basis. Recital 41 of the GDPR clarifies in this context:

"when this regulation refers to a legal basis or a legislative measure, this does not necessarily require a legislative act adopted by a parliament, without prejudice to the requirements according to the constitutional order of the Member State in question. However, this legal basis or legislative measure must be clear and precise, and its application must be foreseeable for those to whom it applies, as required by the case law of the Court of Justice of the European Union ('Court of Justice') and the European Court of Human Rights."

57. The Dispute Chamber notes that the respondent relies on the "Temporary measures after the COVID-19 peak for all residential care centers, short-stay centers type 1, recovery centers, groups of assisted living and service apartment buildings in Flanders" communicated by the Agency for Care and Health on July 9, 2020. The Dispute Chamber notes that these temporary measures are based on the Decision of the Flemish Government of March 13, 2020, to take temporary measures to combat the spread of COVID-19.²¹ The Dispute Chamber also notes that this Decision, in turn, finds a legal basis in the Flemish Decree of November 21, 2003, concerning preventive health policy, and more specifically in Articles 7 and 44, §2.²² In the Note to the Flemish Government regarding the draft of the aforementioned Decision²³, the following is mentioned in this regard: "From the policy area of health and residential care and in implementation of Article 44, §2 of the decree concerning preventive health policy..."

21 Decision of the Flemish Government of March 13, 2020, to take temporary measures to combat the spread of COVID-19, B.S. March 19, 2020, p. 16172

22 Decree of November 21, 2003, concerning preventive health policy (1), B.S. February 3, 2004, p. 6308

23 Note to the Flemish Government, Draft decision of the Flemish Government to take temporary measures to combat the spread of COVID-19, VR 2020 1303 DOC.0227/1

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health policy, which gives the Flemish government the possibility to take initiatives regarding biotic factors that pose a potential danger to public health, measures are now being taken to counter the further spread of COVID-19 among vulnerable and older individuals. Vulnerable and older individuals are those who, due to their vulnerability or age, are more exposed to threats to their health, and in implementation of Article 7 of the decree concerning preventive health policy, the Flemish Government pays extra attention to this.” In that same Note, it is also mentioned that for the further implementation of the Decision, a delegation to the Flemish minister responsible for health and residential care is recorded. In this context, the following is mentioned: “The Agency for Care and Health communicates to the recognized facilities, and the measures are communicated via general newsletters intended for all other stakeholders. The information can also be found on the agency's website, which contains specific information about COVID-19. The Decision is published in full in the Belgian Official Gazette.”

58. In light of the above, the Dispute Chamber decides that the temporary measures communicated to the respondent by the Agency for Care and Health indeed had a regulatory character, as they stem from a Decision of the Flemish Government. Indeed, there is an explicit delegation of authority to the competent Flemish minister, which means that the temporary measures were issued in execution of the aforementioned Flemish decree, with the intention of quickly and effectively establishing generally applicable rules in light of the COVID-19 crisis, compliance with which was not merely optional. The Dispute Chamber thus finds that the temporary measures could serve as a valid legal basis for processing within the meaning of Article 9.2. i) GDPR in conjunction with Article 6.1. c) GDPR. Given that the aforementioned Decision was published in full in the Belgian Official Gazette, and given that the applicable measures were published on the website of the Agency for Care and Health, the Dispute Chamber rules that the requirement of foreseeability for the individual concerned was also met. Furthermore, the Dispute Chamber finds that the purpose of the measures and the associated processing is sufficiently clear, on the one hand given their wording and on the other hand given the context in which they were imposed.

59. The third constitutive element (iii) requires that the relevant processing must be necessary to comply with the invoked legal obligation in accordance with Article 6.1. c)

24 It should be clarified that a delegation of authority to an administration for the establishment of certain essential elements is not possible, but that this concerns the concrete implementation of the regularly established processing activities (in the Decision) within the specific context of urgent measures within residential care centers during the corona pandemic.

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GDPR, as well as being necessary for reasons of general interest in the field of public health in accordance with Article 9.2. i) GDPR.

60. In this regard, the Dispute Chamber notes that the temporary measures of July 9, 2020, stipulate the following: “Visitors may not exhibit any symptoms for 14 days prior to the visit and must not have tested positive for COVID-19 in the last 14 days, nor have had low/high-risk contact. The visitor may be asked to endorse a declaration of honor.” The Dispute Chamber agrees with the respondent's position that, based on this wording, it was obliged to refuse access to the residential care center to visitors who meet these criteria, to the extent possible. The Dispute Chamber finds that signing a declaration of honor in which the visitor confirms compliance with the access conditions appears to be a workable and proportional way to ensure that the measures are adhered to. The Dispute Chamber is of the opinion that the declaration of honor contains the elements that are strictly necessary to assess whether a visitor meets the access conditions. The Dispute Chamber also believes that the processing of health declarations was necessary for reasons of general interest in the field of public health. The processing occurred within the framework of the temporary measures taken to combat the further outbreak and spread of COVID-19 and is justified by the fact that the residents of a residential care center belong to one of the risk groups for serious health problems or death due to COVID-19.

61. In light of the above, the Dispute Chamber therefore concludes that all constitutive elements have

been demonstrated, and it rules that the respondent could lawfully invoke Article 9.2. i) GDPR, in conjunction with Article 6.1. c) GDPR, to process the aforementioned health data of visitors through a declaration of honor.

II.2.2. Regarding compliance with the principles of storage limitation, transparency, purpose limitation, minimal data processing, accuracy, integrity, and confidentiality.

Preliminary Remark of the Dispute Chamber

62. Regarding the allegations concerning the accountability obligation (Article 5.2. GDPR) and the obligations under Articles 24 and 25 GDPR, the Dispute Chamber considers the following.

63. The Inspection Service bases its findings on the alleged incomplete provision of information by the respondent. However, the Dispute Chamber is of the opinion that failing to fully respond to information requests does not, in itself, suffice to establish a breach of Articles 5.2, 24, or 25 GDPR. While these articles stipulate that the data controller must take appropriate technical and organizational measures and must be able to demonstrate compliance with the fundamental principles of the GDPR (Article 5.1. GDPR), they do not constitute a general standard of care that is automatically violated in every case of ambiguity or gap in the provision of information.

64. Article 5.2. GDPR (the accountability obligation) requires the data controller to demonstrate that it has complied with the provisions (specifically the fundamental principles) of the GDPR. Articles 24 and 25 GDPR specify this obligation by requiring that appropriate safeguards be built in at the design stage and by default to effectively implement the GDPR principles—such as data minimization and storage limitation. The data controller must therefore be able to demonstrate what measures have been taken to process only necessary data and to protect the rights of data subjects.

65. The mere fact that the responses provided to the Inspection Service appeared incomplete in demonstrating compliance with other (substantive) principles does not, however, in itself, indicate that the aforementioned obligations have been breached *ipso facto*. In other words, to confirm a breach of Articles 5.2, 24, or 25 GDPR, concrete violations of compliance with those provisions must be demonstrated.

66. As the respondent itself noted, the view that any (alleged) breach of a GDPR provision automatically also constitutes a breach of the aforementioned provisions does not follow from the objective of these provisions. A mere lack of (complete) information provision may at most indicate a possible underlying non-compliance, but does not in itself lead to an independent breach of the aforementioned articles. The Court of Justice has also recently confirmed that a negative fact does not automatically mean that a norm has been violated: a data breach does not, in itself, imply that the security obligation of Article 32 GDPR has been breached. Only after a concrete assessment of the security measures taken can it be determined whether they were adequate or not. The Court of Justice clarified: “Consequently, Articles 24 and 32 GDPR cannot be understood in such a way that the mere fact that unauthorized disclosure of or unauthorized access to personal data has occurred by a third party is sufficient to conclude that the measures taken by the relevant data controller were not appropriate in the sense of these provisions, without giving the latter the opportunity to provide counter-evidence.” 25

25 CJEU Judgment of December 14, 2023, *Natsionalna agentsia za prihodite*, C-340/21, para 31. Decision on the Merits 75/2025 — 22/35

67. In the same spirit, it cannot be inferred from the incomplete answering of questions by the Inspection Service, *mutatis mutandis*, that the accountability obligation or the obligations under Articles 24 and 25 of the GDPR have been disregarded.

68. The Dispute Chamber establishes in this case that the Inspection Service has not provided sufficient evidence of a material breach of the principles governed by Articles 5.2, 24, and 25 of the GDPR. The respondent cooperated well during the investigation of the Inspection Service and indeed provided a considerable amount of information and documents. They also provided additional clarification regarding the measures taken and the justification for the processing.

69. However, the Dispute Chamber retains its authority to determine, based on its own assessment in concreto, that shortcomings exist on the part of the respondent in complying with the obligations set forth in these provisions.

Principle of Storage Limitation (Article 5.1. e) GDPR)

70. The Inspection Service notes that the respondent claims to retain visitor data for 14 days in accordance with the guidelines of the Agency for Care and Health. However, the Inspection Service also notes that the respondent has not provided a copy of those guidelines, which means they do not demonstrate to what extent compliance with them is mandatory. Furthermore, the Inspection Service notes that it has not received a copy of the documents that demonstrate that the relevant personal data is effectively destroyed after 14 days, although the respondent was explicitly asked to “provide a response supported by documents.” The Inspection Service deems this a violation of Articles 5.1. e) and 5.2. GDPR, 24.1. GDPR, and Article 25, paragraph 1 and paragraph 2 of the GDPR.

71. The respondent argues that the temporary measures of July 9, 2020, clearly state that the retention period is 14 days. Furthermore, the respondent submits a ‘user manual for visitor registration’²⁶ which, according to them, shows that the paper documents were to be destroyed after 14 days by the management of the relevant facility.

72. Contrary to the respondent's claim, the Dispute Chamber finds that the temporary measures of July 9, 2020, do not explicitly mention a retention period of 14 days but only stipulate that residential care centers must make clear agreements about where and how the contact details of visitors are stored. Regarding the data in the declaration of honor, the Dispute Chamber notes that the model document from the Agency for Care and Health²⁷ states the following: “The facility that processes personal data via a declaration of honor in the context of a visiting arrangement must do so in accordance with the General Data Protection Regulation (GDPR) and must therefore inform the signatory of the declaration of honor about: [...] the retention period of the declaration of honor or the criteria for determining this retention period [...]” The Dispute Chamber rules that the respondent was required to determine the retention period of the declarations of honor at the time of the facts in accordance with Article 5.1. e) GDPR (‘storage limitation’). The Dispute Chamber, on the other hand, notes that the temporary measures of March 17, 2021, do explicitly state that the data collected for contact tracing may be retained for a maximum of 14 calendar days and must then be destroyed.²⁸

73. Although the respondent does not substantiate why it already applied a retention period of 14 days in the period before March 17, 2021, the Dispute Chamber rules that this retention period was necessary for the purpose for which the data was processed and aligns with the later legally established retention period. Moreover, the documents provided by the Inspection Service do not demonstrate that the respondent retained the declarations of honor for longer than 14 calendar days. For these reasons, the Dispute Chamber rules that the respondent did not violate Article 5.1. e) GDPR, and therefore also did not violate Article 5.2. GDPR, Article 24.1. GDPR, and Article 25, paragraph 1 and paragraph 2 of the GDPR.

Principle of Transparency (Article 5.1. a) GDPR)

74. The Inspection Service notes that the respondent does not provide a copy or a link to the privacy statement anywhere for the online visitor registration. It also notes that for the paper visitor registration, a general paragraph is provided, which states the following: “Your personal data is processed by the organization to protect its residents, patients, and employees against the Coronavirus epidemic, in the exceptional health situation resulting therefrom, at the request of the government as a legal obligation and based on general interest. In accordance with the principles of the European Regulation 2016/679 on the protection of personal data of April 27, 2016. If you wish to receive additional information (email address of the respondent's DPO or by post to the respondent's address).” The Inspection Service rules that such a general paragraph is insufficient to properly and transparently inform the data subjects. Based on this, the Inspection Service rules that the respondent violated Article 5.1. a) and 5.2 GDPR, Article 24.1. GDPR, and Article 25.1. GDPR.

28 Document 33. Measures of the Agency for Care and Health of March 17, 2021 – Bundle of documents in the respondent's reply.

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75.

The respondent argues that the findings of the Inspection Service are manifestly incorrect. Regarding the online visitor registration, it claims that there is indeed a link provided to the privacy statement, in which the visitor is transparently informed about the processing of their personal data.²⁹ Additionally, it

notes that the paper visitor registration is always accompanied by a privacy statement that can be consulted at the reception of the facility when a visitor registers. The respondent also argues that, in response to the Inspection Report, it has taken measures to further increase transparency regarding visitors. For instance, the privacy statement in the visitor application has been further refined by introducing layering, providing a table of contents, and adding a summary that allows users to inform themselves about the processing of their personal data with minimal effort.

76.

Taking into account the findings of the Inspection Service and after assessing the arguments of the respondent and the privacy statement attached to the documents, the Dispute Chamber

rules that the respondent did not violate the principle of transparency in accordance with Article 5.1. a) GDPR, and therefore concludes that the respondent also did not violate Article 5.2. GDPR, Article 24.1. GDPR, and Article 25.1. GDPR.

77.

Moreover, the Dispute Chamber adds the following. In implementation of the principle of transparency from Article 5.1.a) GDPR, it is, based on Article 12.1, Article 13.1, Article 14.1, and Article 14.2 GDPR, necessary for the data controller to provide the data subjects with concise, transparent, and understandable information about the personal data being processed. The Dispute Chamber elaborates on this further under title II.3 of this decision. However, the findings of the Inspection Service only pertained to the general privacy statement, which does not apply to the processing of visitor data, while no specific charge was formulated regarding the specific privacy statement for visitors.

Principle of Purpose Limitation (Article 5.1. b) GDPR)

78.

The Inspection Service finds that the respondent indicates during the investigation that the personal data collected in the context of visitor registration is only processed for the treatment, prevention, and limitation of the further spread of COVID-19, and that it is not processed for any other purpose. The Inspection Service first judges that this wording is very broad and is not limited to the specific situation of the respondent. Secondly, the Inspection Service refers to the privacy statement of the respondent (version June 4, 2020), where under the title “(iii) For what purpose do we collect your personal data?” other purposes are mentioned, and where there is furthermore no reference to COVID-19. According to the Inspection Service, the respondent thereby violates Articles 5.1. b) and 5.2. GDPR, Article 24.1. GDPR, and Article 25.1. GDPR.

79.

The respondent argues that the privacy statement (version June 4, 2020) refers to the purposes for the processing of personal data in the context of visitor registration. According to the respondent, it clearly states that it processes personal data (i) to schedule a visit with the resident from the facility, (ii) to contact the data subjects in case of a change in the appointment, (iii) to keep the data subjects informed of adjustments in the service provision, and (iv) to keep the data subjects informed of new offerings in the total service provision. The respondent points out that these purposes must be viewed in light of the specific situation, and that they therefore frame within the treatment, prevention, and limitation of the further spread of COVID-19. The respondent also argues that, in order to address the comments in the inspection report, it has created a new privacy statement for visitors (version of March 18, 2021), in which the purposes of the processing are clearly stated.

80. Taking into account the findings of the Inspection Service and after assessing the arguments of the respondent and the privacy statement attached to the documents, the Dispute Chamber is of the opinion that the documents provided by the Inspection Service do not sufficiently demonstrate that the respondent has used the collected data in the context of visitor registration for purposes other than those it has stated, leading it to conclude that the respondent did not violate Articles 5.1. b) and therefore did not violate Article 5.2. GDPR, Article 24.1. GDPR, and Article 25.1. GDPR.

Principle of Data Minimization (Article 5.1. c) GDPR)

81.

The Inspection Service finds that the respondent processes the address, name, and telephone number

of visitors, as well as a check on whether a temperature measurement is performed. The Inspection Service judges that the respondent does not demonstrate why this personal data is necessary for the purposes for which it was processed. It considers this a violation of Articles 5.1. c) and 5.2. GDPR, Article 24.1. GDPR, and Article 25, paragraph 1 and paragraph 2 GDPR.

82.

As further explained in paragraphs 50 and 51 of this decision, the Dispute Chamber judges that it was necessary for the respondent to process the name, address, and telephone number of visitors in order to comply with the legal obligation resting upon it, namely to act as a contact point to provide its cooperation and...

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to effectively implement the Cooperation Agreement regarding contact tracing. As for the checkbox for temperature measurement, the Dispute Chamber notes that it has been removed from the registration form, both from the paper and the online version.

83. Based on the above, the Dispute Chamber concludes that the respondent does not violate articles 5.1. c) and therefore did not violate article 5.2. GDPR, article 24.1. GDPR, and article 25, paragraphs 1 and 2 GDPR.

Principle of Accuracy (art. 5.1. d) GDPR)

84. The Inspection Service concludes that the respondent does not demonstrate that it has taken the necessary measures to ensure that the processed personal data is accurate and, where necessary, updated. The Inspection Service considers this a violation of articles 5.1. d) and 5.2. GDPR, article 24.1. GDPR, and article 25.1. GDPR.

85. The respondent argues that this finding cannot be upheld, as it has indeed taken measures to ensure that the processed personal data in the context of visitor registration is accurate and, where necessary, updated. More specifically, the respondent states that when the visitor uses the digital visitor application, he/she fills in his/her personal data himself/herself. The visitor can also consult the filled-in personal data and update or change it if it is outdated or incorrect. When the visitor makes an appointment by phone, their data is entered by an employee into the digital visitor application. At the moment the visitor arrives at the facility, the employee will call out the name of the person, after which they can report to the reception. The respondent argues that at that moment a check takes place to verify whether the data provided by phone is correct. Finally, the respondent states that, given the short retention period of the data (14 days), an update of the data is usually not necessary.

86. Taking into account the findings of the Inspection Service and after assessing the respondent's arguments, the Dispute Chamber concludes that the respondent did not violate article 5.1. d) GDPR, and therefore concludes that the respondent also did not violate article 5.2. GDPR, article 24.1. GDPR, and article 25.1. GDPR. The Dispute Chamber is of the opinion that the allegations made are insufficiently substantiated.

The Principle of Integrity and Confidentiality (article 5.1. f) GDPR)

87. In the context of the investigation by the Inspection Service, the respondent argues that it has taken appropriate technical and organizational measures to ensure the integrity and confidentiality of the processed personal data in the context of visitor registration in accordance with article 5.1. f) GDPR. The respondent states that

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for the paper registration forms, all employees of the relevant residential care center were instructed to treat these confidentially. Only the forms from the current day were kept at the reception. The forms from previous days were organized and stored in a locked cabinet or room, usually in the management office. After a retention period of 14 days, the forms were destroyed. The respondent explains that necessary measures were also taken for the online visitor registration. The management of the residential care center was given the role with admin rights and determined the further allocation of users (employees or residents) in the application. In the context of visitor registration, the roles 'staff' and 'contact' were also active. The 'staff' role was used in the residential care center to handle the check-in of visitors. The roles with rights cannot be modified by the admin profiles, but only by the processor who provides the application. The visitor themselves can only view and manage their agenda.

88. The Inspection Service considers the security of personal data to be insufficient, as it is not clear who exactly has access to the paper registration forms and under what conditions, and since the "roles with rights" can only be modified by the processor of the visitor application, which means the respondent cannot exercise control over this. Additionally, the Inspection Service notes that the respondent does not specify what sanctions are imposed for non-compliance with the aforementioned measures. The Inspection Service considers this a violation of Articles 5.1. f) and 5.2. GDPR, Article 24.1. GDPR, and Article 25.1. GDPR.

89. The respondent argues that the findings of the Inspection Service cannot be upheld, as they contradict the documents in the file. The respondent explains that only the employee at the reception has access to the paper forms. To enhance the confidentiality of the forms, the respondent works with separate strips, instead of one list for the entire day. According to the respondent, this makes it impossible for visitors to check who has visited the residential care center on that day. After visiting hours, the forms are collected by the management and organized in a locked cabinet or room, to which no one else has access. Regarding the "roles with rights" in the digital visitor application, the respondent explains that the Inspection Service's finding that it cannot exercise control over this is incorrect. While it is true that only the processor can modify the roles, the processor can only make these adjustments at the request of the respondent. Thus, the processor acts solely based on the explicit instruction of the respondent, as is appropriate for a processor under the processing agreement.³⁰ Finally, the respondent indicates that the non-compliance with the

30 Document 34. Processing Agreement - Bundle of documents for the respondent's reply.

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GDPR policy or any other rules regarding data protection by its employees can, of course, lead to sanctions such as negative evaluations and even dismissal for urgent reasons.

90. Taking into account the findings of the Inspection Service and after assessing the arguments of the respondent and the processor agreement attached to the documents, the Dispute Chamber concludes that the respondent did not violate Article 5.1. f) GDPR, and therefore also did not violate Article 5.2. GDPR, Article 24.1. GDPR, and Article 25.1. GDPR. The Dispute Chamber is of the opinion that the allegations presented are insufficiently substantiated.

II.3. Article 12, paragraph 1 and paragraph 6 GDPR, Article 13, paragraph 1 and paragraph 2 GDPR, and Article 14, paragraph 1 and paragraph 2 GDPR

91. The Dispute Chamber notes that the findings in the Inspection Report relate to the general privacy statement as it was available on the respondent's website on September 14, 2020. As evidenced by the documents, this general privacy statement applies to the processing of personal data of (future) residents, patients, website users, applicants, and volunteers. From the explanation provided by the respondent, as reiterated by the Dispute Chamber in paragraph 6 of this decision, a separate privacy statement was created by the respondent that specifically applies to visitors. This specific privacy statement is provided at the time of registration to the visitor, whether online or on paper. The Dispute Chamber notes that the DPO of the respondent informed the complainant on August 4, 2020, that, due to exceptional circumstances and urgency, the specific privacy statement applicable to visitors had not yet been added to the general privacy statement on the website.

92. Given that the findings in the Inspection Report solely relate to the general privacy statement of the respondent, which does not apply to the processing of personal data of visitors, the Dispute Chamber will not issue any further judgment regarding the findings of the Inspection Service in this regard. The Dispute Chamber holds that these findings fall outside the scope of the facts and the context of the complaint.

93. Furthermore, the Dispute Chamber finds that no concrete allegation was presented regarding the content of the privacy statement that specifically applies to visitors. In light of this absence, the debates regarding this privacy statement have only taken place to a limited extent. The Dispute Chamber is therefore of the opinion that the respondent has not been able to fully defend itself as a result.

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II.4. Article 37, paragraph 5 and paragraph 7 GDPR and Article 38, paragraph 2 and paragraph 3 GDPR

Appointment of the Data Protection Officer (Article 37.5. GDPR)

94. The Inspection Service finds that the respondent has acted in violation of Article 37.5. According to Article 37.5 GDPR, the Data Protection Officer (DPO) must be appointed, among other things, based on his/her expertise in the field of legislation and practice regarding data protection. The Inspection Service concludes that the respondent does not demonstrate what the precise motivation was for the decision to appoint the DPO to her position.

95. The respondent argues that her DPO has obtained a certificate as a DPO, which demonstrates her qualifications to fulfill that role. According to the respondent, her appointment as DPO was based not only on her demonstrated knowledge of data protection but also on her education in computer science. The respondent explains that her DPO has years of experience with processes within residential care centers and the healthcare sector. She has been active for more than 30 years, with 10 years of information security as part of her experience. She was therefore appointed based on her professional qualities and expertise in the field of legislation and practice regarding data protection. Additionally, the respondent argues that her DPO keeps her knowledge up to date by participating in various congress days and conferences. Finally, bi-monthly audits are conducted by the parent company, and there is internal control by the GDPR steering group at the respondent's headquarters.

96. Based on this argumentation, the Dispute Chamber concludes that it has not been demonstrated that the DPO of the respondent lacked sufficient professional qualities and expertise, or was unable to perform her tasks in accordance with Article 39 GDPR, leading the Dispute Chamber to rule that the respondent did not violate Article 37.5. GDPR.

Notification obligation for contact details of the Data Protection Officer (Article 37.7. GDPR)

97. The Inspection Service finds that the respondent has acted in violation of Article 37.7 GDPR.

Article 37.7 GDPR stipulates that the contact details of the officer must be made known and must be communicated to the supervisory authority. The Inspection Service notes that the contact details of the respondent's DPO were communicated to the GBA on July 17, 2018. According to the Inspection Service, this notification should have occurred earlier, and in any case no later than one month after the entry into force of the GDPR, namely May 25, 2018.

98. The respondent argues that nowhere in the GDPR can it be inferred that the contact details of the DPO must be communicated to the GBA within a specific timeframe. Article 37.7 GDPR merely states that the contact details must be communicated, without specifying when this should occur.

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99. In this regard, the Dispute Chamber points out that although the GDPR does not specify a hard deadline, the communication of the contact details of the DPO must occur without unnecessary delay, ideally at the time the DPO is appointed. In this case, the Dispute Chamber finds that the contact details of the DPO were communicated to the GBA on July 17, 2018, which is less than two months after the GDPR came into effect. Furthermore, the Dispute Chamber notes that the communication of the DPO's contact details took place well before the filing of the complaint and the subsequent investigation. This notification thus occurred entirely in tempore non suspecto. For these reasons, the Dispute Chamber is of the opinion that, under these circumstances, there is no infringement of Article 37.7 GDPR.

Obligation to support the data protection officer (Article 38.2 GDPR)

100. The Inspection Service finds that the respondent has acted in violation of Article 38.2 GDPR. That article stipulates that the data controller is obliged to support the data protection officer in his tasks, including providing him with the necessary resources. The Inspection Service judges that the respondent does not sufficiently comply with this obligation, as it does not provide a team that permanently supports the officer, there is no dedicated budget for the officer, and the officer of the respondent performs her duties part-time. The Inspection Service considers this support insufficient, especially given that the respondent is a large organization that processes many and diverse personal data.

101. The respondent explains that its data protection officer (DPO) is indeed supported by a full team. For instance, there is collaboration with a privacy organization that assists the officer in her work, and she has a team of lawyers at her disposal who specialize in privacy and data protection. Furthermore, local privacy officers have been appointed in all of the respondent's facilities, who assist the officer in

carrying out her tasks. In addition, the officer is a member of the internal 'GDPR steering group', which meets approximately five times a year and consists of: the IT director, the Operations director, the HR manager, the senior legal counsel, and a representative from the finance management. The steering group reports directly to the CEO of the respondent. Secondly, the respondent emphasizes that there is no part-time role being performed as a data protection officer. It argues that its officer performs part-time tasks related to information security, but that the execution of these tasks is framed within the implementation of technical and organizational measures as stipulated by the GDPR. According to the respondent, information security is therefore inextricably linked to the tasks that the data protection officer must perform. Finally, the respondent argues that its data protection policy indeed does not specify which...

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budget is provided to support the data protection officer. However, according to her, this does not mean that there is no budget, as is clearly evidenced by the resources made available to her officer.

102. The Dispute Chamber first rules that the respondent demonstrates that it sufficiently supports the role of DPO. The respondent indeed shows that its DPO is actively supported in the performance of her tasks both through external resources (privacy organization and law firm) and internally (local privacy officers and GDPR steering group). Secondly, the Dispute Chamber finds that it has not been proven that there is insufficient time available to perform the tasks as DPO. The respondent's data protection policy states in this regard: "Based on the risks encountered, the time spent by the officer will be periodically evaluated by the data protection steering group. Based on this, the time spent will be adjusted without prejudice to the officer's task package." Thirdly, the Dispute Chamber points out that adequate support in terms of financial resources is essential to comply with the obligation in Article 38.2 of the GDPR. Although in this case the respondent does not provide a defined or estimated budget, the Dispute Chamber is of the opinion that it has allocated sufficient financial resources to support its officer, given the resources made available to her. Thus, the Dispute Chamber concludes that the respondent did not violate Article 38.2 of the GDPR.

Reporting obligation of the data protection officer (Article 38.3 GDPR)

103. The Inspection Service finds that the respondent has acted in violation of Article 38.3 of the GDPR. This article stipulates, among other things, that the data controller must report directly to the highest management of the data controller or the processor. The Inspection Service refers in its report to the organizational chart of the respondent, which shows that the data protection officer does not report directly to the Board of Directors of the respondent, as she is under the direction of the 'IT Director'.

104. The respondent argues that it has made changes in response to the Inspection Report, whereby the data protection officer now reports directly to the CEO of the respondent twice a month. The Dispute Chamber points out that in accordance with Article 38.3 of the GDPR, the officer must have the opportunity to express his or her dissenting opinion to the highest management level, such as a Board of Directors. In this regard, the Dispute Chamber notes that the respondent's 'data protection policy' indeed states that the data protection officer, if necessary, can report directly to the Board of Directors.

105. Nevertheless, the Dispute Chamber rules that the respondent violated Article 38.3 of the GDPR for the period prior to the aforementioned adjustments.

II.5. Article 30, paragraph 1 and paragraph 3 GDPR

106. The Inspection Service also identifies several violations regarding the register of processing activities of the respondent, which fall outside the scope of the complaint. Specifically, the Inspection Service identifies the following shortcomings:

- A violation of Article 30.1 a) GDPR, as the email address, telephone number, and fax number of the respondent are not mentioned.
- A violation of Article 30.1 c) GDPR, as the respondent uses abbreviations in the column 'categories of personal data/data subjects' whose meaning is unclear.
- A violation of Article 30.1 e) GDPR, as it remains unclear based on the processing register to which third countries personal data are transferred.
- A violation of Article 30, paragraph 1 and paragraph 3 GDPR, as the respondent has generally

submitted an incomplete register of processing activities.

107. The respondent argues that Article 30.1 a) merely states that the contact details of the data controller must be included in the register, and that it has therefore complied with this obligation by including its address details – which serve as contact details by post – in its register of processing activities.

108. Regarding the finding concerning Article 30.1 c) GDPR, the respondent explains that in the 'overview' tab abbreviations are indeed used, but that for each processing activity a link is included to a separate and more detailed sheet in which the abbreviations are spelled out. It therefore argues that the description of the categories of data subjects and the categories of personal data has indeed been fully included in the register.

109. Regarding the violation of Article 30.1 e), the respondent emphasizes that only for 3 processing activities it was not specified whether there is a transfer to third countries. These processing activities were highlighted in yellow by the respondent, who already explained during the investigation to the Inspection Service that these are processing activities that were recently added/modified and still needed to be operationally and internally verified. Thus, the respondent still needed to check whether or not there was a transfer to third countries in these three cases.

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countries would be of personal data. Regarding the determination by the Inspection Service that the respondent has submitted a more general incomplete register, the respondent emphasizes that maintaining and updating the register of processing activities is an “ongoing exercise.” The fact that the respondent was still in the process of verifying matters demonstrates, according to her, that she is making the necessary efforts to maintain her register.

110. Firstly, the Dispute Chamber recalls that the obligation to include the contact details in Article 30.1. a) GDPR in the processing register is intended to enable unambiguous identification of the data controller. For that reason, the term ‘contact details’ cannot be limited to the simple postal address of the data controller, but it is expected that all possible information is included that allows for contact, such as the telephone number and email address of the data controller.

111. Secondly, the Dispute Chamber recalls that, in order to effectively comply with the obligations contained in the GDPR, it is essential that the data controller creates an overview of the processing of personal data that it carries out. This register is primarily a tool to assist the data controller in complying with the GDPR for the various data processing activities it performs. The Dispute Chamber is of the opinion that the processing register is an essential instrument in the context of the accountability obligation already mentioned, as explained in Recital 82 of the GDPR. It is therefore important that the register is complete and accurate. For that reason, it also considers it to be in violation of the GDPR when essential elements of certain processing activities, such as the retention period or the transfer outside the EU, are filled in incompletely.

112. In light of the above, the Dispute Chamber finds that the respondent violated Article 30.1. a) and 30.1. e) GDPR.

III. Justification of the imposed measures

113. The Dispute Chamber points out that a considerable amount of time has passed between the submission of the last conclusion in this case and the making of the present decision. The Dispute Chamber wishes to expressly apologize to the parties involved for this. The Dispute Chamber takes this passage of time into account when determining the appropriate measure in this case.

114. The Dispute Chamber acknowledges that the facts in this case that led to violations of the GDPR may have been the result of the respondent's need to quickly adapt to the unprecedented circumstances of the COVID-19 pandemic.

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the application for opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Ger.W.33, or via the e-Deposit IT system of Justice (Article 32ter of the Ger.W.).

(Get). Hielke HIJMANS

Chairman of the Dispute Chamber

1° the day, the month, and the year;

2° the name, first name, residence of the applicant and, where applicable, their capacity and their national register or business number;

3° the name, first name, residence, and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the application;

5° the judge before whom the application is filed;

6° the signature of the applicant or their lawyer.

33 The application with its annex is sent by registered mail to the clerk of the court or filed with the registry in as many copies as there are parties involved.